

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR ENGROSSED
SENATE BILL NO. 1264

By: Gillespie of the Senate

and

Miller of the House

COMMITTEE SUBSTITUTE

[crimes and punishments - Class A3 offenses - Class
B3 offenses - assault and battery - repealers -
effective date]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 5, Chapter 366, O.S.L.
2024, as amended by Section 1, Chapter 187, O.S.L. 2025 (21 O.S.
Supp. 2025, Section 20E), is amended to read as follows:

Section 20E. A. ~~Upon the effective date of this act~~ On or
after January 1, 2026, Class A3 shall include the following criminal
offenses:

1 1. Domestic assault and battery with a deadly weapon, as
2 provided for in ~~paragraph 2 of subsection D of Section 644 of Title~~
3 ~~21 of the Oklahoma Statutes~~ this title;

4 2. Second or subsequent conviction of domestic abuse against a
5 pregnant woman with knowledge of the pregnancy, as provided for in
6 paragraph 2 of subsection E of Section 644 of Title 21 of the
7 ~~Oklahoma Statutes~~ this title;

8 3. Aggravated assault and battery upon a police officer,
9 sheriff, deputy sheriff or highway patrolman, corrections personnel,
10 or any state peace officer, as provided for in subsection A of
11 Section 650 of ~~Title 21 of the Oklahoma Statutes~~ this title;

12 4. Shooting with the intent to kill, as provided for in
13 subsection A of Section 652 of ~~Title 21 of the Oklahoma Statutes~~
14 this title;

15 5. Using a vehicle to facilitate the intentional discharge of a
16 firearm, crossbow, or other weapon, as provided for in subsection B
17 of Section 652 of ~~Title 21 of the Oklahoma Statutes~~ this title;

18 6. Assault and battery with a deadly weapon, as provided for in
19 subsection C of Section 652 of ~~Title 21 of the Oklahoma Statutes~~
20 this title;

21 7. Maiming, as provided for in Section 751 of ~~Title 21 of the~~
22 ~~Oklahoma Statutes~~ this title;

1 8. Sexual abuse by a caretaker, as provided for in paragraph 2
2 of subsection B of Section 843.1 of ~~Title 21 of the Oklahoma~~
3 ~~Statutes~~ this title;

4 9. Child abuse, as provided for in subsection A of Section
5 843.5 of ~~Title 21 of the Oklahoma Statutes~~ this title;

6 10. Enabling child abuse, as provided for in subsection B of
7 Section 843.5 of ~~Title 21 of the Oklahoma Statutes~~ this title;

8 11. Child sexual abuse, as provided for in subsection E of
9 Section 843.5 of ~~Title 21 of the Oklahoma Statutes~~ this title;

10 12. Enabling child sexual abuse, as provided for in subsection
11 G of Section 843.5 of ~~Title 21 of the Oklahoma Statutes~~ this title;

12 13. Child sexual exploitation, as provided for in subsection H
13 of Section 843.5 of ~~Title 21 of the Oklahoma Statutes~~ this title;

14 14. Enabling child sexual exploitation, as provided for in
15 subsection J of Section 843.5 of ~~Title 21 of the Oklahoma Statutes~~
16 this title;

17 15. Lewd or indecent proposals or acts to a child, as provided
18 for in subsection A of Section 1123 of ~~Title 21 of the Oklahoma~~
19 ~~Statutes~~ this title;

20 16. Terrorism, as provided for in subsection B of Section
21 1268.2 of ~~Title 21 of the Oklahoma Statutes~~ this title;

22 17. Conspiracy to commit terrorism, as provided for in
23 subsection A of Section 1268.3 of ~~Title 21 of the Oklahoma Statutes~~
24 this title;

1 18. Any person above the age of eighteen (18) who, on campuses
2 or public school grounds, advocates revolution, sabotage, force and
3 violation, sedition, treason, or the overthrow of the United States
4 government, as provided for in subsection B of Section 1327 of ~~Title~~
5 ~~21 of the Oklahoma Statutes~~ this title;

6 19. Arson in the first degree, as provided for in subsection A
7 of Section 1401 of ~~Title 21 of the Oklahoma Statutes~~ this title;

8 20. Arson while manufacturing, attempting to manufacture, or
9 endeavoring to manufacture a controlled dangerous substance, as
10 provided for in subsection B of Section 1401 of ~~Title 21 of the~~
11 ~~Oklahoma Statutes~~ this title; and

12 21. Causing personal injury while committing an act of arson,
13 as provided for in Section 1405 of ~~Title 21 of the Oklahoma Statutes~~
14 this title.

15 B. Any person convicted of a Class A3 criminal offense set
16 forth in this section shall be punished in accordance with the
17 corresponding penalties provided for in the Oklahoma Statutes.

18 SECTION 2. AMENDATORY Section 8, Chapter 366, O.S.L.
19 2024 (21 O.S. Supp. 2025, Section 20H), is amended to read as
20 follows:

21 Section 20H. A. ~~Upon the effective date of this act~~ On or
22 after January 1, 2026, Class B3 shall include the following criminal
23 offenses:
24

1 1. Embezzlement of state property by a public officer of the
2 state or any county, city, town, or member or officer of the
3 Legislature, deputy, or clerk, as provided for in Section 341 of
4 ~~Title 21 of the Oklahoma Statutes~~ this title;

5 2. Burning, destroying, or injuring any public building, as
6 provided for in Section 349 of ~~Title 21 of the Oklahoma Statutes~~
7 this title;

8 3. Resisting or aiding in resisting the execution of process,
9 as provided for in Section 539 of ~~Title 21 of the Oklahoma Statutes~~
10 this title;

11 4. Domestic abuse with a prior pattern of physical abuse, as
12 provided for in Section 644.1 of ~~Title 21 of the Oklahoma Statutes~~
13 this title;

14 5. ~~Assault, battery, or assault and battery upon an intimate~~
15 ~~partner or a family or household member with any sharp or dangerous~~
16 ~~weapon, as provided for in paragraph 1 of subsection D of Section~~
17 ~~644 of Title 21 of the Oklahoma Statutes;~~

18 ~~6.~~ Assault and battery against a current or former intimate
19 partner or a family or household member that results in great bodily
20 injury to the victim, as provided for in subsection F of Section 644
21 of ~~Title 21 of the Oklahoma Statutes~~ this title;

22 ~~7.~~ 6. Second or subsequent conviction for assault and battery
23 by strangulation or attempted strangulation against an intimate
24 partner or a family or household member, as provided for in

1 subsection J of Section 644 of ~~Title 21 of the Oklahoma Statutes~~
2 this title;

3 ~~8.~~ 7. Second or subsequent conviction for committing or
4 attempting to commit a felony while wearing body armor, as provided
5 for in Section 1289.26 of ~~Title 21 of the Oklahoma Statutes~~ this
6 title;

7 ~~9.~~ 8. Riotous assembly for the purpose of resisting the
8 execution of any statute or obstructing any public officer, as
9 provided for in paragraph 2 of Section 1312 of ~~Title 21 of the~~
10 ~~Oklahoma Statutes~~ this title;

11 ~~10.~~ 9. Carrying at the time of a riot any firearm or other
12 deadly weapon or being disguised while participating in a riot, as
13 provided for in paragraph 3 of Section 1312 of ~~Title 21 of the~~
14 ~~Oklahoma Statutes~~ this title;

15 ~~11.~~ 10. Directing, advising, encouraging, or soliciting other
16 persons to use force or violence while participating in a riot, as
17 provided for in paragraph 4 of Section 1312 of ~~Title 21 of the~~
18 ~~Oklahoma Statutes~~ this title;

19 ~~12.~~ 11. Arson with the intent to injure or defraud the insurer,
20 as provided for in subsection B of Section 1403 of ~~Title 21 of the~~
21 ~~Oklahoma Statutes~~ this title;

22 ~~13.~~ 12. Forgery in the first degree, as provided for in Section
23 1561 of ~~Title 21 of the Oklahoma Statutes~~ this title;

1 ~~14.~~ 13. Forgery of stock certificates or securities, as
2 provided for in Section 1562 of ~~Title 21 of the Oklahoma Statutes~~
3 this title;

4 ~~15.~~ 14. Fraudulently uttering one's signature on any instrument
5 as that of another with the same name, as provided for in Section
6 1622 of ~~Title 21 of the Oklahoma Statutes~~ this title;

7 ~~16.~~ 15. Fraudulently uttering one's endorsement on any
8 negotiable instrument as that of another with the same name, as
9 provided for in Section 1623 of ~~Title 21 of the Oklahoma Statutes~~
10 this title;

11 ~~17.~~ 16. Total or partial erasure or obliteration of any
12 instrument or writing with intent to defraud, as provided for in
13 Section 1624 of ~~Title 21 of the Oklahoma Statutes~~ this title;

14 ~~18.~~ 17. Signing fictitious name as an officer or agent of a
15 corporation, as provided for in Section 1626 of ~~Title 21 of the~~
16 ~~Oklahoma Statutes~~ this title;

17 ~~19.~~ 18. Procuring, soliciting, selling, or receiving more than
18 ten ~~(10)~~ telephone records by fraudulent, deceptive, or false means,
19 as provided for in paragraph 3 of subsection B of Section 1742.2 of
20 ~~Title 21 of the Oklahoma Statutes~~ this title;

21 ~~20.~~ 19. Violating the Viatical Settlements Act of 2008, as
22 provided for in paragraph 1 of subsection F of Section 4055.14 of
23 Title 36 of the Oklahoma Statutes;
24

1 ~~21.~~ 20. Third or subsequent conviction of driving under the
2 influence of alcohol or other intoxicating substance, as provided
3 for in paragraph 4 of subsection C of Section 11-902 of Title 47 of
4 the Oklahoma Statutes;

5 ~~22.~~ 21. Driving under the influence with a blood or breath
6 alcohol concentration of fifteen-hundredths (0.15) or more, as
7 provided for in subsection D of Section 11-902 of Title 47 of the
8 Oklahoma Statutes;

9 ~~23.~~ 22. Injuring, destroying, or attempting to injure or
10 destroy any hazardous liquid transportation system, as provided for
11 in Section 47.6 of Title 52 of the Oklahoma Statutes;

12 ~~24.~~ 23. Bringing into or having in his or her possession in any
13 jail, state penal institution, or other place where prisoners are
14 located, any gun, knife, bomb, other dangerous instrument,
15 controlled dangerous substance, alcoholic beverage, money, or
16 financial documents, as provided for in subsection A of Section 21
17 of Title 57 of the Oklahoma Statutes;

18 ~~25.~~ 24. Purchasing or attempting to purchase, receive, or
19 otherwise acquire any product, mixture, or preparation containing
20 any detectable quantity of base pseudoephedrine or ephedrine after a
21 conviction of manufacturing or attempting to manufacture
22 methamphetamine, as provided for in paragraph 5 of subsection G of
23 Section 2-401 of Title 63 of the Oklahoma Statutes;

1 ~~26.~~ 25. Distributing, other than by dispensing, a Schedule I or
2 Schedule II controlled dangerous substance, in the course of
3 legitimate business, as provided for in paragraph 1 of subsection A
4 of Section 2-406 of Title 63 of the Oklahoma Statutes;

5 ~~27.~~ 26. Using a fictitious, revoked, suspended, or fraudulent
6 registration number in the course of manufacturing or distributing a
7 controlled dangerous substance, as provided for in paragraph 2 of
8 subsection A of Section 2-406 of Title 63 of the Oklahoma Statutes;

9 ~~28.~~ 27. Furnishing false or fraudulent material information in,
10 or omitting any material information from, any application, report,
11 or document required by the Uniform Controlled Dangerous Substances
12 Act, as provided for in paragraph 4 of subsection A of Section 2-406
13 of Title 63 of the Oklahoma Statutes;

14 ~~29.~~ 28. Making, distributing, or possessing any punch, die,
15 plate, stone, or other thing designed to print, imprint, or
16 reproduce the trademark, trade name, or other identifying mark, upon
17 any drug, container, or labeling, as provided for in paragraph 5 of
18 subsection A of Section 2-406 of Title 63 of the Oklahoma Statutes;

19 ~~30.~~ 29. Trafficking twenty-five (25) pounds or more of
20 marijuana, as provided for in subparagraph a of paragraph 1 of
21 subsection C of Section 2-415 of Title 63 of the Oklahoma Statutes;

22 ~~31.~~ 30. Trafficking twenty-eight (28) grams or more of cocaine,
23 coca leaves, or cocaine base, as provided for in subparagraph a of
24

1 paragraph 2 of subsection C of Section 2-415 of Title 63 of the
2 Oklahoma Statutes;

3 ~~32.~~ 31. Trafficking three hundred (300) grams or more of
4 cocaine, coca leaves, or cocaine base, as provided for in
5 subparagraph b of paragraph 2 of subsection C of Section 2-415 of
6 Title 63 of the Oklahoma Statutes;

7 ~~33.~~ 32. Trafficking ten (10) grams or more of heroin, as
8 provided for in subparagraph a of paragraph 3 of subsection C of
9 Section 2-415 of Title 63 of the Oklahoma Statutes;

10 ~~34.~~ 33. Trafficking twenty (20) grams or more of amphetamine or
11 methamphetamine, as provided for in subparagraph a of paragraph 4 of
12 subsection C of Section 2-415 of Title 63 of the Oklahoma Statutes;

13 ~~35.~~ 34. Trafficking two hundred (200) grams or more of
14 amphetamine or methamphetamine, as provided for in subparagraph b of
15 paragraph 4 of subsection C of Section 2-415 of Title 63 of the
16 Oklahoma Statutes;

17 ~~36.~~ 35. Trafficking one (1) gram or more of lysergic acid
18 diethylamide (LSD), as provided for in subparagraph a of paragraph 5
19 of subsection C of Section 2-415 of Title 63 of the Oklahoma
20 Statutes;

21 ~~37.~~ 36. Trafficking twenty (20) grams or more of phencyclidine
22 (PCP), as provided for in subparagraph a of paragraph 6 of
23 subsection C of Section 2-415 of Title 63 of the Oklahoma Statutes;

1 ~~38.~~ 37. Trafficking thirty (30) tablets or ten (10) grams of
2 3,4-Methylenedioxy methamphetamine, as provided for in subparagraph
3 a of paragraph 7 of subsection C of Section 2-415 of Title 63 of the
4 Oklahoma Statutes;

5 ~~39.~~ 38. Aggravated trafficking one hundred (100) tablets or
6 thirty (30) grams of 3,4-Methylenedioxy methamphetamine, as provided
7 for in subparagraph b of paragraph 7 of subsection C of Section 2-
8 415 of Title 63 of the Oklahoma Statutes;

9 ~~40.~~ 39. Trafficking one thousand (1,000) grams or more of
10 morphine, as provided for in paragraph 8 of subsection C of Section
11 2-415 of Title 63 of the Oklahoma Statutes;

12 ~~41.~~ 40. Trafficking four hundred (400) grams or more of
13 oxycodone, as provided for in paragraph 9 of subsection C of Section
14 2-415 of Title 63 of the Oklahoma Statutes;

15 ~~42.~~ 41. Trafficking three thousand seven hundred fifty (3,750)
16 grams or more of hydrocodone, as provided for in paragraph 10 of
17 subsection C of Section 2-415 of Title 63 of the Oklahoma Statutes;

18 ~~43.~~ 42. Trafficking five hundred (500) grams or more of
19 benzodiazepine, as provided for in paragraph 11 of subsection C of
20 Section 2-415 of Title 63 of the Oklahoma Statutes;

21 ~~44.~~ 43. Trafficking one (1) gram or more of fentanyl or
22 ~~carfentanyl~~ carfentanil, as provided for in subparagraph a of
23 paragraph 12 of subsection C of Section 2-415 of Title 63 of the
24 Oklahoma Statutes;

1 ~~45.~~ 44. Employing, hiring, or using an individual under fifteen
2 (15) years of age to unlawfully transport, carry, sell, give away,
3 prepare for sale, or peddle any controlled dangerous substance, as
4 provided for in subsection D of Section 2-419.1 of Title 63 of the
5 Oklahoma Statutes;

6 ~~46.~~ 45. Second or subsequent conviction for violating the
7 Vessel and Motor Chop Shop, Stolen and Altered Property Act, as
8 provided for in subsection J of Section 4253 of Title 63 of the
9 Oklahoma Statutes; and

10 ~~47.~~ 46. Third or subsequent conviction for violating the Vessel
11 and Motor Chop Shop, Stolen and Altered Property Act, as provided
12 for in subsection J of Section 4253 of Title 63 of the Oklahoma
13 Statutes.

14 B. Any person convicted of a Class B3 criminal offense set
15 forth in this section shall be punished in accordance with the
16 corresponding penalties provided for in the Oklahoma Statutes.

17 SECTION 3. AMENDATORY 21 O.S. 2021, Section 644, as last
18 amended by Section 1, Chapter 322, O.S.L. 2025 (21 O.S. Supp. 2025,
19 Section 644), is amended to read as follows:

20 Section 644. A. Assault shall, upon conviction, be punishable
21 by imprisonment in a county jail not exceeding ~~thirty (30)~~ ninety
22 (90) days, or by a fine ~~of~~ not more than Five Hundred Dollars
23 (\$500.00), or by both such ~~fine~~ imprisonment and ~~imprisonment~~ fine.

1 B. Assault and battery shall, upon conviction, be punishable by
2 imprisonment in a county jail not exceeding ~~ninety (90) days~~ six (6)
3 months, or by a fine ~~of~~ not more than One Thousand Dollars
4 (\$1,000.00), or by both such ~~fine~~ imprisonment and ~~imprisonment~~
5 fine.

6 C. Any person who commits any assault and battery against a
7 current or former intimate partner or a family or household member
8 as defined by Section 60.1 of Title 22 of the Oklahoma Statutes
9 shall be guilty of domestic abuse. Upon conviction, the defendant
10 shall be punished by imprisonment in the county jail for not more
11 than one (1) year, or by a fine not exceeding Five Thousand Dollars
12 (\$5,000.00), or by both such ~~fine~~ imprisonment and ~~imprisonment~~
13 fine. Upon conviction for a second or subsequent offense, the
14 person shall be ~~punished~~ guilty of a Class B5 felony offense
15 punishable by imprisonment in the custody of the Department of
16 Corrections for not more than four (4) years, or by a fine not
17 exceeding Five Thousand Dollars (\$5,000.00), or by both such ~~fine~~
18 imprisonment and ~~imprisonment~~ fine. The provisions of Section 51.1
19 of this title shall apply to any second or subsequent offense.

20 D. ~~1. Any person who, with intent to do bodily harm and~~
21 ~~without justifiable or excusable cause, commits any assault,~~
22 ~~battery, or assault and battery upon an intimate partner or a family~~
23 ~~or household member as defined by Section 60.1 of Title 22 of the~~
24 ~~Oklahoma Statutes with any sharp or dangerous weapon, upon~~

1 ~~conviction, is guilty of domestic assault or domestic assault and~~
2 ~~battery with a dangerous weapon which shall be a felony and~~
3 ~~punishable by imprisonment in the custody of the Department of~~
4 ~~Corrections not exceeding ten (10) years, or by imprisonment in a~~
5 ~~county jail not exceeding one (1) year. The provisions of Section~~
6 ~~51.1 of this title shall apply to any second or subsequent~~
7 ~~conviction for a violation of this paragraph.~~

8 2. Any person who, with intent to do bodily harm and without
9 ~~such~~ justifiable or excusable cause, shoots commits any assault and
10 battery upon an intimate partner or a family or household member as
11 defined by Section 60.1 of Title 22 of the Oklahoma Statutes by
12 means of any deadly weapon or by such other means or force that is
13 likely to produce death shall, upon conviction, be guilty of
14 domestic assault and battery with a deadly weapon which shall be a
15 Class A3 felony offense punishable by imprisonment in the custody of
16 the Department of Corrections not exceeding life. The provisions of
17 Section 51.1 of this title shall apply to any second or subsequent
18 conviction for a violation of this ~~paragraph~~ subsection.

19 E. 1. Any person convicted of domestic abuse committed against
20 a pregnant woman with knowledge of the pregnancy shall be guilty of
21 a Class B5 felony offense, punishable by imprisonment in the custody
22 of the Department of Corrections for not more than five (5) years.

23 2. Any person convicted of a second or subsequent offense of
24 domestic abuse against a pregnant woman with knowledge of the

1 pregnancy shall be guilty of a Class A3 felony, offense punishable
2 by imprisonment in the custody of the Department of Corrections for
3 not less than ten (10) years.

4 3. Any person convicted of domestic abuse committed against a
5 pregnant woman with knowledge of the pregnancy and a miscarriage
6 occurs or injury to the unborn child occurs shall, upon conviction,
7 be guilty of a Class A1 felony, offense punishable by imprisonment
8 in the custody of the Department of Corrections for not less than
9 twenty (20) years.

10 F. Any person convicted of domestic abuse as defined in
11 subsection C of this section that results in great bodily injury to
12 the victim shall, upon conviction, be guilty of a Class B3 felony
13 ~~and punished~~ offense punishable by imprisonment in the custody of
14 the Department of Corrections for not more than ten (10) years, or
15 by imprisonment in the county jail for not more than one (1) year.
16 The provisions of Section 51.1 of this title shall apply to any
17 second or subsequent conviction of a violation of this subsection.

18 G. Any person convicted of domestic abuse as defined in
19 subsection C of this section that was committed in the presence of a
20 child shall be punished by imprisonment in the county jail for not
21 less than six (6) months nor more than one (1) year, or by a fine
22 not exceeding Five Thousand Dollars (\$5,000.00), or by both such
23 ~~fine imprisonment and imprisonment fine~~. Any person convicted of a
24 second or subsequent domestic abuse as defined in subsection C of

1 this section that was committed in the presence of a child shall be
2 ~~punished~~ guilty of a Class B5 felony offense punishable by
3 imprisonment in the custody of the Department of Corrections for not
4 less than one (1) year nor more than five (5) years, or by a fine
5 not exceeding Seven Thousand Dollars (\$7,000.00), or by both such
6 ~~fine imprisonment~~ and ~~imprisonment~~ fine. The provisions of Section
7 51.1 of this title shall apply to any second or subsequent offense.
8 For every conviction of a domestic abuse crime in violation of any
9 provision of this section committed against an intimate partner or a
10 family or household member as defined by Section 60.1 of Title 22 of
11 the Oklahoma Statutes, the court shall:

12 1. Specifically order as a condition of a suspended or deferred
13 sentence that a defendant undergo treatment to bring about the
14 cessation of domestic abuse as specified in paragraph 2 of this
15 subsection;

16 2. a. The court shall require the defendant to complete an
17 assessment and follow the recommendations of a
18 batterers' intervention program to attend a fifty-two-
19 week batterers' intervention program or a pilot
20 batterers' intervention program, if available,
21 certified by the Attorney General.

22 b. If the defendant participates in a batterers'
23 intervention program, the program shall require the
24 defendant to attend for a minimum of fifty-two (52)

1 weeks, complete the program, and be evaluated before
2 and after attendance of the program by program staff.
3 Three unexcused absences in succession or seven
4 unexcused absences in a period of fifty-two (52) weeks
5 from any court-ordered batterers' intervention program
6 shall be prima facie evidence of the violation of the
7 conditions of probation for the district attorney to
8 seek acceleration or revocation of any probation
9 entered by the court.

10 c. To investigate the effectiveness of additional
11 batterers' intervention models, the Attorney General,
12 beginning February 1, 2026, may certify two pilot
13 batterers' intervention programs for a period of
14 thirty-six (36) months located in Oklahoma and Tulsa
15 Counties. Proposals for certification as a pilot
16 batterers' intervention program may be approved only
17 if made by an organization that was dually certified
18 as a batterers' intervention program and a domestic
19 violence and sexual assault program on or before
20 January 1, 2025, or by an organization certified as a
21 batterers' intervention program on or before January
22 1, 2025, pursuant to a written agreement with an
23 organization certified as a domestic violence and
24 sexual assault program on or before January 1, 2025.

1 Treatment provided through a pilot batterers'
2 intervention program shall be evidence-based and shall
3 be a minimum of twenty-six (26) weeks' duration.
4 Participation in a pilot batterers' intervention
5 program shall be limited to fifty participants at any
6 given time. Pilot batterers' intervention programs
7 shall be self-funded, including any fees which may be
8 charged to the participants; provided, however, state
9 or federal funding may continue for domestic violence
10 and sexual abuse programs.

- 11 d. The Office of the Attorney General shall promulgate
12 rules for pilot batterers' intervention programs in
13 consultation with domestic violence and batterers'
14 intervention programs or advocacy organizations.
15 The Attorney General shall establish within his or her
16 administrative rules a screening and referral process
17 to review referrals to the pilot batterers'
18 intervention programs; provided, however, individuals
19 convicted of domestic abuse with a dangerous weapon or
20 domestic abuse by strangulation shall not be eligible
21 to participate in the pilot program. The Attorney
22 General shall require reporting of data necessary for
23 evaluation of the pilot programs. The pilot programs
24 shall provide the Attorney General with annual updates

1 and at the end of a pilot program term, a formal
2 evaluation shall be done by a third party agreed upon
3 by the Attorney General and the pilot program
4 operator.

5 e. All participants in the pilot program shall be subject
6 to a validated risk assessment conducted by a
7 qualified professional. The results of the assessment
8 shall be used to determine program placement based on
9 the level of risk and individual circumstances.

10 Participation in any shared or joint setting by both
11 the survivor and the individual who has caused harm
12 shall be prohibited under a pilot program. The
13 Attorney General shall adopt rules to implement this
14 subparagraph, including standards for risk assessment
15 tools and differentiated response models.

16 f. The Attorney General may provide by rule for extension
17 of no more than twenty-four (24) months beyond thirty-
18 six (36) months of a pilot batterers' intervention
19 program if recommended by the third-party evaluator.

20 g. Pilot batterers' intervention programs shall:

21 (1) prioritize survivors' well-being in every part of
22 the pilot program including screening,
23 participation, reporting, and evaluation,
24

- 1 (2) ensure that batterers' intervention programs use
2 appropriate intervention strategies to assist the
3 batterer in fostering the appropriate skills to:
4 (a) stop the violence committed by the batterer,
5 (b) accept personal accountability for battering
6 and personal responsibility for the decision
7 to stop or not to stop battering, and
8 (c) change the existing attitudes and beliefs of
9 the batterer that support the coercive
10 behavior of the batterer,
11 (3) address all forms of battering,
12 (4) be culturally informed and provide culturally
13 appropriate services to all participants,
14 (5) provide services that are affordable and
15 accessible for participants, including
16 participants with disabilities and limited
17 English proficiency,
18 (6) provide a uniform standard for evaluating the
19 performance of a batterers' intervention program,
20 (7) be informed by evidence-based practice, research,
21 and proven field experience, including risk
22 assessment, that enhances victim safety,
23 (8) foster local and statewide communication and
24 interaction between and among batterers'

intervention programs and victim advocacy
programs, and

(9) ensure that batterers' intervention programs
operate as an integrated part of the wider
community response to battering.

h. A program for anger management, couples counseling, or
family and marital counseling shall not solely qualify
for the treatment requirement for domestic abuse
pursuant to this subsection. The counseling may be
ordered in addition to the treatment of domestic abuse
or per evaluation as set forth below. If, after
sufficient evaluation and attendance at required
treatment sessions, the domestic violence treatment
program determines that the defendant does not
evaluate as a perpetrator of domestic violence or does
evaluate as a perpetrator of domestic violence and
should complete other programs of treatment
simultaneously or prior to or subsequent to domestic
violence treatment, including, but not limited to,
programs related to ~~the~~ mental health, apparent
substance or alcohol abuse or inability or refusal to
manage anger, the defendant shall be ordered to
complete the counseling as per the recommendations of
the domestic violence treatment program;

1 3. a. The court shall set a review hearing no more than one
2 hundred twenty (120) days after the defendant is
3 ordered to undergo treatment for domestic abuse to
4 assure the attendance and compliance of the defendant
5 with the provisions of this subsection. The court may
6 delay sentencing of the defendant until the defendant
7 has presented proof to the court of enrollment in a
8 domestic abuse treatment program certified by the
9 Attorney General and attendance at weekly sessions of
10 such program. Such proof shall be presented to the
11 court by the defendant no later than one hundred
12 twenty (120) days after the defendant is ordered to
13 such treatment. At such time, the court may complete
14 sentencing, beginning the period of the sentence from
15 the date that proof of enrollment is presented to the
16 court, and schedule reviews as required by
17 ~~subparagraphs a~~ this subparagraph and subparagraph b
18 of this paragraph and paragraphs 4 and 5 of this
19 subsection. Three unexcused absences in succession or
20 seven unexcused absences in a period of fifty-two (52)
21 weeks from any court-ordered treatment program shall
22 be prima facie evidence of the violation of the
23 conditions of probation for the district attorney to
24

1 seek acceleration or revocation of any probation
2 entered by the court.

3 b. The court shall set a second review hearing after the
4 completion of the treatment to assure the attendance
5 and compliance of the defendant with the provisions of
6 this subsection and the treatment requirements. The
7 court shall retain continuing jurisdiction over the
8 defendant during the course of ordered counseling
9 through the final review hearing;

10 4. The court may set subsequent or other review hearings as the
11 court determines necessary to assure the defendant attends and fully
12 complies with the provisions of this subsection and the treatment
13 requirements;

14 5. At any review hearing, if the defendant is not
15 satisfactorily attending a treatment program or is not in compliance
16 with treatment requirements, the court may order the defendant to
17 further or continue treatment or other necessary services. The
18 court may revoke all or any part of a suspended sentence, deferred
19 sentence, or probation pursuant to Section 991b of Title 22 of the
20 Oklahoma Statutes and subject the defendant to any or all remaining
21 portions of the original sentence;

22 6. At the first review hearing, the court shall require the
23 defendant to appear in court. Thereafter, for any subsequent review
24 hearings, the court may accept a report on the progress of the

1 defendant from the treatment program. There shall be no requirement
2 for the victim to attend review hearings; and

3 7. If funding is available, a referee may be appointed and
4 assigned by the presiding judge of the district court to hear
5 designated cases set for review under this subsection. Reasonable
6 compensation for the referees shall be fixed by the presiding judge.
7 The referee shall meet the requirements and perform all duties in
8 the same manner and procedure as set forth in Sections 1-8-103 and
9 2-2-702 of Title 10A of the Oklahoma Statutes pertaining to referees
10 appointed in juvenile proceedings.

11 The defendant may be required to pay all or part of the cost of
12 the treatment, in the discretion of the court.

13 H. As used in subsection G of this section, "in the presence of
14 a child" means in the physical presence of a child; or having
15 knowledge that a child is present and may see or hear an act of
16 domestic violence. For the purposes of ~~subsections C and~~ subsection
17 G of this section, "child" may be any child whether or not related
18 to the victim or the defendant.

19 I. For the purposes of subsections C and G of this section, any
20 conviction for assault and battery against an intimate partner or a
21 family or household member as defined by Section 60.1 of Title 22 of
22 the Oklahoma Statutes shall constitute a sufficient basis for a
23 felony charge:
24

1 1. If that conviction is rendered in any state, county, or
2 parish court of record of this or any other state; or

3 2. If that conviction is rendered in any municipal court of
4 record of this or any other state for which any jail time was
5 served; provided, no conviction in a municipal court of record
6 entered prior to November 1, 1997, shall constitute a prior
7 conviction for purposes of a felony charge.

8 J. Any person who commits any assault and battery by
9 strangulation or attempted strangulation against an intimate partner
10 or a family or household member as defined by Section 60.1 of Title
11 22 of the Oklahoma Statutes shall, upon conviction, be guilty of a
12 Class B5 felony offense of domestic abuse by strangulation ~~and shall~~
13 ~~be punished~~ punishable by imprisonment in the custody of the
14 Department of Corrections for a period ~~of~~ not less than one (1) year
15 nor more than three (3) years, or by a fine ~~of~~ not more than Three
16 Thousand Dollars (\$3,000.00), or by both such ~~fine~~ imprisonment and
17 ~~imprisonment~~ fine. Upon a second or subsequent conviction for a
18 violation of this section, the defendant shall be ~~punished~~ guilty of
19 a Class B3 felony punishable by imprisonment in the custody of the
20 Department of Corrections for a period ~~of~~ not less than three (3)
21 years nor more than ten (10) years, or by a fine ~~of~~ not more than
22 Twenty Thousand Dollars (\$20,000.00), or by both such ~~fine~~
23 imprisonment and ~~imprisonment~~ fine. The provisions of Section 51.1
24 of this title shall apply to any second or subsequent conviction of

1 a violation of this subsection. As used in this subsection,
2 "strangulation" means any form of asphyxia; including, but not
3 limited to, asphyxia characterized by closure of the blood vessels
4 or air passages of the neck as a result of external pressure on the
5 neck or the closure of the nostrils or mouth as a result of external
6 pressure on the head.

7 K. Any district court of this state and any judge thereof shall
8 be immune from any liability or prosecution for issuing an order
9 that requires a defendant to:

10 1. Attend a treatment program for domestic abusers certified by
11 the Attorney General;

12 2. Attend counseling or treatment services ordered as part of
13 any suspended or deferred sentence or probation; and

14 3. Attend, complete, and be evaluated before and after
15 attendance by a treatment program for domestic abusers, certified by
16 the Attorney General.

17 L. There shall be no charge of fees or costs to any victim of
18 domestic violence, stalking, or sexual assault in connection with
19 the prosecution of a domestic violence, stalking, or sexual assault
20 offense in this state.

21 M. In the course of prosecuting any charge of domestic abuse,
22 stalking, harassment, rape, or violation of a protective order, the
23 prosecutor shall provide the court, prior to sentencing or any plea
24 agreement, a local history and any other available history of past

1 convictions of the defendant within the last ten (10) years relating
2 to domestic abuse, stalking, harassment, rape, violation of a
3 protective order, or any other violent misdemeanor or felony
4 convictions.

5 N. Any plea of guilty or finding of guilt for a violation of
6 subsection C, F, G, I, or J of this section shall constitute a
7 conviction of the offense for the purpose of this ~~act~~ section or any
8 other criminal statute under which the existence of a prior
9 conviction is relevant for a period of ten (10) years following the
10 completion of any court imposed probationary term; provided, the
11 person has not, in the meantime, been convicted of a misdemeanor
12 involving moral turpitude or a felony.

13 O. For purposes of subsection F of this section, "great bodily
14 injury" means bone fracture, ~~protracted and obvious~~ disfigurement,
15 concussion, protracted loss or impairment of the function of a body
16 part, organ, or mental faculty, burns of the second degree or
17 greater, injury requiring surgical intervention, injury requiring
18 continuous hospitalization of forty-eight (48) hours or more, or any
19 injury creating a substantial risk of death.

20 P. Any pleas of guilty or nolo contendere or finding of guilt
21 to a violation of any provision of this section shall constitute a
22 conviction of the offense for the purpose of any subsection of this
23 section under which the existence of a prior conviction is relevant
24

1 for a period of ten (10) years following the completion of any
2 sentence or court imposed probationary term.

3 SECTION 4. REPEALER 21 O.S. 2021, Section 644, as last
4 amended by Section 1, Chapter 147, O.S.L. 2025 (21 O.S. Supp. 2025,
5 Section 644), is hereby repealed.

6 SECTION 5. REPEALER 21 O.S. 2021, Section 644, as last
7 amended by Section 2, Chapter 162, O.S.L. 2025 (21 O.S. Supp. 2025,
8 Section 644), is hereby repealed.

9 SECTION 6. REPEALER 21 O.S. 2021, Section 644, as last
10 amended by Section 3, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025,
11 Section 644), is hereby repealed.

12 SECTION 7. This act shall become effective November 1, 2026.

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